

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

A business dispute is pending in court. One party has produced a digitally signed PDF agreement and a series of emails to prove that I accepted certain contractual terms. I believe the PDF may have been altered after I signed an earlier version and I dispute that the final document is genuine. What legal provisions govern the authenticity and admissibility of these digital records?

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APPLICABLE SECTIONS

Section 61 — Electronic or digital record

The PDF and emails are electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Central to proof of the PDF/email records.

Section 66 — Proof as to electronic signature

Where the electronic signature is alleged to be the subscriber's, proof is required except for a secure electronic signature.

Section 73 — Proof as to verification of digital signature

Allows verification of a digital signature.

Section 85 — Presumption as to electronic agreements

Applies to an electronic record purporting to be an agreement containing electronic/digital signatures of the parties.

Section 86 — Presumption as to electronic records and electronic signatures

Relevant to secure electronic records/signatures; outside the secure category it does not create a general authenticity presumption.

Section 90 — Presumption as to electronic messages

May apply to the emails, but does not presume who sent the message.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 This is primarily a BSA authenticity/admissibility scenario. The combination of sections 61-63, 66 and 73 directly addresses electronic records and signature proof; sections 85-86 supply specific presumptions with important limits.

✓ STRENGTHS & RIGHTS

- 1 The disputed signature/version can be technically verified rather than accepted on face value.

X RISKS & OBLIGATIONS

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Do not claim a blanket presumption that all digitally signed PDFs are unaltered; [section 86](#) is limited to secure electronic records/signatures.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Compare hashes/versions, verify the certificate/public key and preserve complete email headers.

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